Louisa County Water Authority
Board of Directors
April 10, 2024

MEMBERS PRESENT: Mr. Douglas Smith, Vice-Chairman; Mr. Bob Hardy; Mr. Robert Morgan; Mr. David Kies; Mr. Byron Wilson; Mr. Tom Filer

MEMBERS ABSENT: Mr. Judson Foster, Chairman

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Ms. Danielle Mychajlonka, Human Resources; Mr. Hunter Martin, Water Operations Manager; Mr. Manning Woodward, Louisa County Board of Supervisors

A. Call to Order

Vice-Chairman Smith called the meeting to order at 6:01 pm.

1. ADOPTION OF THE AGENDA

Vice-Chairman Smith asked if there were any changes or additions to the agenda. Ms. Baughman asked to add an additional closed session for the purpose of discussion of personnel matters. Mr. Kies made a motion to adopt the agenda as amended. The motion was seconded by Mr. Hardy and carried 6-0 among the members present.

B. Presentations

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTES:

A. MARCH 13, 2024 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – MARCH 2024
B. APPROVAL OF DISBURSEMENTS – MARCH 2024
C. CONSTRUCTION FUND – MARCH 2024

The Board reviewed the Consent Agenda and Treasurer's Report.

Upon completion of the review, Mr. Filer made a motion to approve the Consent Agenda and Treasurer's Report. The motion was seconded by Mr. Morgan and carried 6-0 among the members present.

E. Old Business

4. UPDATE – JAMES RIVER WATER PROJECT

At the James River Water Authority meeting this morning, Justin Curtis with Aqua Law reported that the permit through the Army Corps of Engineers should be issued by the April 15, 2024, deadline for financing. The only item left to completely close the loop is one signature on the Memorandum of Agreement from the Archaeology Department.

The next hurdle is the purchase of credits for wetlands. Basically, this is the purchase of land to place under conservation, due to the disturbance of wetlands for the construction of the infrastructure needed to complete the project, pump station, intake, and the balance of the pipeline installation. This cost is estimated at between $700,000 - $800,000.

Additionally, credits will need to be purchased for stream crossings. Approximately .31 credits are needed, but there are no available credits available for purchase. Until the credits can be purchased no work can be completed at stream crossings. The cost anticipated to purchase the .31 credits needed is $60,000 - $90,000 per one credit. A letter of credit stating that as soon as the credits become available, they will be purchased will keep the project moving forward.

5. NORTHEAST CREEK WATER TREATMENT PLANT

A. NECWTP SEDIMENTATION BASINS IMPROVEMENT (SLUDGE-VAC SYSTEM UPDATE)

Bids were received on March 27, 2024, at the Louisa County Water Authority Business Office. Two bids were received: 1) The Reid Group, LLC in the amount of $1,225,650 and 2) WACO in the amount of $1,069,745. To date the Authority requested $1,050,000.

The General Manager recommend moving the project forward and making a final funding request from the County in September 2024.

Mr. Hardy made a motion to approve proceeding with the Northeast Creek Sedimentation Basins Improvement (Sludge-Vac System). The motion was seconded by Mr. Filer. Further discussion ensued. Mr. Wilson asked for the General Manager to make sure there are provisions in the contract to deal with missed deadlines and change orders to protect the Authority for this project. Mr. Smith also asked for the approval not to exceed $1.2 million.

Upon completion of the discussion, Mr. Hardy amended his motion to include these provisions. The amended motion was seconded by Mr. Filer and carried 6-0 among the members present.

B. 4th OPERATOR

Two trainees have been interviewed and an interview is scheduled for April 15th with a Class I Operator. Unless something comes out during the interview, an offer will be made quickly to fill a soon to be vacant position. One trainee has been made an offer.

The General Manager asked the Board if they would be willing to create a second trainee position in this fiscal year for the month of June 2024. The second trainee position is included in the FY2025 budget.

Mr. Filer made a motion to approve the second trainee position for the final month of FY2024. The motion was seconded by Mr. Wilson and carried 6-0 among the members present.

6. ZION CROSSROADS WELL SYSTEM UPDATES

A. SPRING CREEK #1 & #2

The ether meter has been received for both meters. We are still waiting on the meter for Spring Creek Well #2, expected in October 2024. The meter for Spring Creek Well #1 has been installed. Staff is in the process of coordinating the ether meter installation and the communication tie in work. An inspection has been requested with the Virginia Department of Health – Office of Drinking Water for Spring Creek #1. Staff is hopeful that Spring Creek #1 will be online by May 2024.

7. LOUISA REGIONAL WWTP

The new blower has been installed. The blower being repaired will be placed into inventory once received. The water line leak will be addressed later in the spring. The UV bulbs have been replaced. One filter cloth has been replaced and the second will be replaced once the weather provides an opportunity to remove the second filter from service while the replacement is taking place.

8. ZION CROSSROADS WWTP

The Zion Crossroads WWTP is experiencing a significant invasion of Ceriodaphnia (water fleas). In previous years, “nuisance” outbreaks have occurred, but nothing like what has been experienced this year. The Chief Operator described the color of the clarifiers as resembling the color of a “slaughterhouse floor”. The outbreak has caused significant fouling of the UV system which has led to exceedances in e coli permit limits. Chlorine has been fed into the clarifier, UV bulbs pulled and cleaned, and other structures scrubbed. The outbreak occurred soon after the warmer weather we experienced prior to Easter weekend. Zion Crossroads WWTP staff are in the process of growing a biomass for the second half of the facility. This is done by trucking sludge from Rivanna Water and Sewer Authorities and Louisa Regional WWTP. The second side of the plant was placed into service on Thursday, April 11, 2024. Efforts will be made to eradicate the infestation in the first side of the WWTP and slowly feed the invaded side into the newly established second side of the WWTP. The General Manager included an article about the water fleas in the report.

Further investigation has uncovered that the source of the Ceriodaphnia outbreak is the lagoon system located in the Crossing Pointe development. Before any additional water from the lagoons can be received at the Zion Crossroads WWTP, the owners / operators will need to eradicate the lagoons of the Ceriodaphnia.

The Board directed the General Manager to send a certified letter to the owner of the lagoons informing them of the infestation and change in our acceptance of the lagoon effluent until after the Ceriodaphnia outbreak is eradicated.

9. UPDATE – NEW BRIDGE WWTP

A. BOOSTER PUMP

The second booster pump was replaced on Wednesday, April 3, 2024.

B. FINAL FILTER

An onsite meeting was held on Friday, April 5, 2024, at the New Bridge WWTP. Present was a filter manufacturer representative, a contractor, Authority staff and engineer. The manufacturer representative provided information on a pilot filtration skid they can provide for approximately $2,000/month. Fifty percent (50%) of the monthly rental cost would go to reducing the purchase cost if the system proved to reduce the TSS to permitted limits and it was decided to purchase the equipment. Some sitework will need to be completed, but the equipment could remain outside through the summer while we pilot the system. If the system proved effective, a structure of some sort would need to be added to prevent freezing. The purchase cost would be ~$50,000; $22,000 less for the equipment than previously quoted. If the equipment doesn't effectively remove TSS, it could be removed and returned to the manufacturer.

Additionally, staff ordered an additive to be fed to the lagoons. This bioaugmentation is used to support the lagoon treatment process, enabling the biomass to operate more efficiently.

10. LEAD SERVICE LINE INVENTORY

The administrative work for the lead service line inventory regulation is complete. Sixteen access agreements have been sent to homeowners. Eleven access agreements have been fully executed and returned. Maintenance staff conducted four field inventory assessments, finding two poly pipe and two copper service lines. Office staff met with a representative from the Virginia Department of Health – Office of Drinking Water on April 10, 2024, to determine the process of submitting everything once all the field inventory work has been completed.

11. NORTHEAST CREEK DAM (SOUTH ANNA DAM #22) AND BOWLERS MILL DAM (SOUTH ANNA #2)

A. LOW LEVEL VALVES – EXERCISE

Exercising of the low-level valves for the Northeast Creek Reservoir (South Anna #22) intake and Bowlers Mill Dam (South Anna #2) intake has been scheduled for May 20, 2024. Bander Smith's schedule has been pushed back due to unforeseen weather events.

12. PROPOSAL – ADDITION OF WATER TO ST. FRANCIS PUMP STATION

A. TOWN OF MINERAL APPROVAL

Nothing new to report.

13. UTILITY STANDARDS

The Town of Louisa has provided their agreement to participate in the updating of the Utility Standards. The work will begin in the coming weeks.

14. DISCUSSION – BANKING SERVICES RFP

Amy Dunivan, Business Operation Manager; Sam Massie, Procurement Office and Pam Baughman, General Manager met with Carter Bank and United Bank representatives on March 15, 2024, to discuss banking service options. Notes from the panel were included in the agenda packet.

After some discussion, Mr. Filer made a motion to award the banking services contract to United Bank. The motion was seconded by Mr. Wilson and carried 6-0 among the members present.

15. DISCUSSION – CONTINGENCY PLANNING

A. PUBLIC FACILITIES PLAN

Chris Coon, Deputy County Administrator, provides the Public Facilities Plan. He is seeking input as the Comprehensive Plan review process begins.

The Board asked the General Manager to update the numbers included in the Public Facilities Plan, add other utilities the Authority oversees and ask to be included in the collaborative section with the County and developers.

B. ZION CROSSROADS WASTEWATER COLLECTION SYSTEM CAPACITY EVALUATION UPDATE

The Board reviewed the proposal from Dewberry Engineers to update the 2018 Zion Crossroads Wastewater Collection System Capacity Evaluation. The proposal includes the addition of any sewer lines since the 2018 study, plus any approved projects (for example Zion Towne Center).

Upon completion of the discussion, Mr. Hardy made a motion to approve the proposal for the Zion Crossroads Wastewater Collection System Capacity Evaluation update. The motion was seconded by Mr. Filer and carried 5-1 with Mr. Wilson voting against.

16. DISCUSSION – PRELIMINARY BUDGETS

A. SUMMARY STATEMENT OF INCOME
B. DETAILED STATEMENT OF INCOME
C. SUMMARY STATEMENT OF EXPENSES
D. DETAILED STATEMENT OF EXPENSES
F. COMBINED STATEMENT OF INCOME EXPENSES
G. REPAIR AND REPLACEMENT OF CAPITAL EQUIPMENT LISTING

The General Manager informed the Board that she received additional guidance that the VRS employer contribution was increasing after the latest draft budget was finalized. The General Manager stated that approval for a Public Hearing Notice on a rate increase would need to be advertised the weeks of May 13th and 20th, 2024 for a June 12th, 2024 Public Hearing.

The Board discussed the range of rate increases provided by the General Manager. Upon completion of the discussion, Mr. Kies made a motion to advertise for a 20% increase in water and sewer rates. The motion was seconded by Mr. Morgan. Further discussion ensued.

Mr. Kies amended his motion to advertise for a 24% increase in water and sewer rates. Mr. Morgan seconded the amended motion accordingly and carried 6-0 among the members present.

17. RATE DISCUSSION

A. CROSSING POINTE PUMP STATION – RATE

B. PUBLIC HEARING – JUNE 12, 2024

The General Manager stated that approval for a Public Hearing Notice on a rate increase would need to be advertised the weeks of May 13th and 20th, 2024 for a June 12th, 2024 Public Hearing.

Mr. Kies made a motion to advertise for and hold a public hearing to receive feedback from customers on the rate increase under consideration. Mr. Morgan seconded the motion and carried 6-0 among the members present.

F. New Business

G. Reports

H. General Manager's Report

● On April 10, 2024, EPA announced the final National Primary Drinking Water Regulation (NPDWR) for six PFAS. To inform the final rule, EPA evaluated over 120,000 comments submitted by the public on the rule proposal, as well as considered input received during multiple consultations and stakeholder engagement activities held both prior to and following the proposed rule. EPA expects that over many years the final rule will prevent PFAS exposure in drinking water for approximately 100 million people, prevent thousands of deaths, and reduce tens of thousands of serious PFAS-attributable illnesses.

EPA is also making unprecedented funding available to help ensure that all people have clean and safe water. In addition to today's final rule, $1 billion in newly available through the Bipartisan Infrastructure Law to help states and territories implement PFAS testing and treatment at public water systems and to help owners of private wells address PFAS contamination.

EPA finalized a National Primary Drinking Water Regulation (NPDWR) establishing legally enforceable levels, called Maximum Contaminant Levels (MCLs), for six PFAS in drinking water. PFOA, PFOS, PFHxS, PFNA, and HFPO-DA as contaminants with individual MCLs, and PFAS mixtures containing at least two or more of PFHxS, PFNA, HFPO-DA, and PFBS using a Hazard Index MCL to account for the combined and co-occurring levels of these PFAS in drinking water. EPA also finalized health-based, non-enforceable Maximum Contaminant Level Goals (MCLGs) for these PFAS.

Compound	Final MCLG	Final MCL (enforceable levels)
PFOA	Zero	4.0 parts per trillion (ppt) (also expressed as ng/L)
PFOS	Zero	4.0 ppt
PFHxS	10 ppt	10 ppt
PFNA	10 ppt	10 ppt
HFPO-DA (commonly known as GenX Chemicals)	10 ppt	10 ppt
Mixtures containing two or more of PFHxS, PFNA, HFPO-DA, and PFBS	1 (unitless) Hazard Index	1 (unitless) Hazard Index

The final rule requires:

Public water systems must monitor for these PFAS and have three years to complete initial monitoring (by 2027), followed by ongoing compliance monitoring. Water systems must also provide the public with information on the levels of these PFAS in their drinking water beginning in 2027.

- Public water systems have five years (by 2029) to implement solutions that reduce these PFAS if monitoring shows that drinking water levels exceed these MCLs.
- Beginning in five years (2029), public water systems that have PFAS in drinking water which violates one or more of these MCLs must take action to reduce levels of these PFAS in their drinking water and must provide notification to the public of the violation.

● **March levels**: At the end of March 2024, the static well levels were down 2.2 feet from the end of February 2024 levels. From March 2023 to March 2024, the well levels are down approximately 6.33 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are down approximately 5.4 feet from the end of February 2024 levels. From March 2023 to March 2024, the well levels are down approximately 11.25 feet.

As of April 2, 2024, the Department of Environmental Quality Drought website is indicating normal conditions exist for precipitation, groundwater, reservoir levels, and stream flow. Currently, no drought watch exists for the entire Northern Piedmont Region.

● The current past-due listing is down to $4,296.57 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $6,238.67.

● The finished water storage tank at Ferncliff Water Treatment Plant is scheduled for cleaning in July. The General Manager has asked to be on the list to move up the cleaning if there is a cancellation.

I. Committees

A. PERSONNEL COMMITTEE

The Personnel Committee met on March 27, 2024, to review salary scales and supplemental policies for the Employee Handbook. Further work and edits were needed. An additional meeting will be scheduled to review revised policies and the salary scales.

B. 2X2 MEETING

Mr. Filer reported to the Board that the first 2X2 meeting went well. A range of topics were discussed including the James River Water Project, the Amazon Web Services project, two of four major projects beginning in the coming months, the co-locating of a sewer force main in a current utility easement to serve the Zion Towne Center project (which will include a bore under I-64), the difficulties hiring employees and the impending retirement of employees.

Mr. Woodward added that the meeting was excellent and productive. Stating that the quarterly discussion would help the County understand the needs of the Authority as the County continues to grow.

J. Short Notice Items

K. Closed Session:

A. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

B. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(1) TO DISCUSS AND CONSIDER PERSONNEL MATTERS; INCLUDING THE DISCIPLINE, APPOINTMENT, ASSIGNMENT, PERFORMANCE AND SALARIES OF SPECIFIC APPOINTEES AND EMPLOYEES.

RETURN TO OPEN MEETING:

Vice-Chairman Smith closed the closed session and immediately reconvened in regular open meeting at 8:07 pm.

CERTIFY:

Mr. Smith read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	ABSENT
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	YES

The motion was carried 6-0 among the members present.

Next meeting date - The next business meeting is scheduled for May 8, 2024.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Hardy made a motion to adjourn at 8:08 pm. The motion was seconded by Mr. Kies and carried 6-0 among the members present.

BY ORDER OF:

Douglas Smith
Vice-Chairman
LOUISA COUNTY WATER AUTHORITY